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Case Number: 25TRCV00322 Hearing Date: July 21, 2026 Dept: P

Motion for Summary Judgment

Moving Party: Defendant Torrance Memorial Medical Center

Responding Party: Plaintiff Carmen Segoviano

RULING

The court considered the moving papers, opposition, and reply. Moving Defendant's Motion for Summary Judgment is GRANTED. Plaintiff's request for a continuance pursuant to Code of Civil Procedure Section 437c(h) is DENIED.

PROCEDURAL BACKGROUND

On January 30, 2025, Plaintiff Carmen Segoviano ("Plaintiff") filed a complaint against Defendants Providence Medical Institute, Providence Medical Institute – Madrona Primary Care, Hubert V. Sung, M.D., Gina S., Torrance Memorial Medical Center, and DOES 1 through 100, inclusive, alleging a single cause of action for Medical Negligence.

On March 11, 2026, Defendant Hubert V. Sung, M.D. ("Dr. Sung") filed a motion for summary judgment.

On April 6, 2026, Defendant Torrance Memorial Medical Center ("Moving Defendant") filed the instant motion. On July 1, 2026, Plaintiff filed an opposition. On July 10, 2026, Moving Defendant filed a reply.

FACTUAL BACKGROUND

Plaintiff was first examined by Dr. Sung at Providence Primary Care –Madrona Clinic ("Madrona Clinic") on January 18, 2024. (UMF No. 1.) During this visit, Plaintiff reported a toe injury on her smallest left toe in addition to left foot swelling that had begun five days earlier. (UMF No. 2.) Upon examination, Dr. Sung noted bony tenderness and swelling of Plaintiff's fifth digit on her left foot, and the X-ray indicated a small non-displaced fracture of Plaintiff's fifth middle phalange. (UMF No. 3.) At the conclusion of Plaintiff's January 18, 2024 examination by Dr. Sung, Plaintiff was instructed to buddy tape her toe, was provided with a post-op shoe, and was prescribed Meloxicam to treat pain. (UMF No. 4.)

On January 22, 2024, four days after Plaintiff's initial visit, Plaintiff followed up with Dr. Sung. (UMF No. 5.) Dr. Sung did not believe that Plaintiff was suffering from an infectious etiology because Dr. Sung did not observe any warmth and Plaintiff's erythema was not worsening. (UMF No. 6.) At this time, Dr. Sung noted that the plan for Plaintiff's care was to check uric acid, evaluate the possibility of gout triggered by trauma, try a different NSAID, provide a tapering course of steroids, and monitor Plaintiff for improvement. (UMF No. 6.)

On January 27, 2024, Plaintiff presented to the Torrance Memorial Medical Center Emergency Department due to concerns about left foot pain, and Plaintiff reported that she had stubbed her toes against the edge of a couch two weeks prior. (UMF No. 7.) Plaintiff reported that she had experienced pain in her left foot since stubbing her toes, with pain primarily concentrated in Plaintiff's midfoot, on the sole. (UMF No. 7.) Plaintiff reported that her primary care provider told Plaintiff that her toe was not broken but had a scratch and instructed Plaintiff to buddy tape her toes. (UMF No. 7.) Plaintiff reported ongoing pain and subsequently visited her primary care provider who prescribed Indomethacin and Prednisone which did not alleviate Plaintiff's pain. (UMF No. 7.)

When Plaintiff removed the tape around her fourth and fifth toes, Plaintiff had raw skin between her toes with no tenderness, erythema, or warmth, although there was mild purple discoloration on the tips of all five of Plaintiff's toes and there was moderate tenderness to Plaintiff's distal midfoot and there was a mild amount of edema. (UMF No. 8.) When Plaintiff was re-examined, she still experienced pain and was treated with Cephalexin and Bactrim. (UMF No. 9.) Plaintiff was recommended outpatient follow up for vascular disease but emergent intervention was not deemed necessary at the time. (UMF No. 10.) Plaintiff experienced mild discharge in the setting of leukocytosis and went home with antibiotics for treatment of possible secondary cellulitis in the setting of chronic peripheral vascular disease. (UMF No. 12.)

On January 30, 2024, Plaintiff returned for an examination by Dr. Sung, who observed decreased capillary refill along with swelling and tenderness in Plaintiff's left foot. (UMF No. 13.) Plaintiff was found to have likely significant stenosis in arterial supply to her left foot. (UMF No. 13.) Due to discoloration of Plaintiff's toes and skin breakdown, Plaintiff was advised to visit the Emergency Room immediately for further evaluation, which Plaintiff did on January 30, 2024. (UMF Nos. 13-14.) Plaintiff's left distal toes had whitish purplish discoloration and there was erythema to Plaintiff's midfoot and tenderness to palpation to the dorsum of Plaintiff's foot. (UMF No. 15.)

Plaintiff's case was discussed with a hospitalist, and Plaintiff was started on a Heparin drip and given IV antibiotics in response to worsening erythema and likely cellulitis. (UMF No. 16.) On January 31, 2024, Plaintiff was transferred to Little Company of Mary. (UMF No. 17.) On February 12, 2024, Plaintiff underwent a left open below-knee amputation, and the amputation was completed on February 22, 2024. (UMF No. 18.) On February 24, 2024, Plaintiff was discharged to a rehabilitation facility. (UMF No. 19.)

LEGAL STANDARD

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. Section 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at Section 437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar, supra*, 25 Cal.4th at 865-66.)

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Id.* at 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff

following extensive discovery to the effect that he has discovered nothing” to support an essential element of his case. (Aguilar, *supra*, 25 Cal.4th at 855.) Under the latter approach, a defendant’s initial evidentiary showing may “consist of the deposition testimony of the plaintiff’s witnesses, the plaintiff’s factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.” (Lona v. Citibank, N.A. (2011) 202 Cal.App.4th 89, 110.) In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff’s factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (Scheiding v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 83.)

(Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Id. at Section 437c(p)(2).) On a motion for summary judgment, the moving party’s supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

DISCUSSION

Moving Party’s Argument

Moving Defendant argues that Plaintiff’s cause of action for Medical Negligence fails because the conduct of Moving Defendant and its staff members was not a substantial factor in causing Plaintiff’s injuries. Moving Defendant relies on the expert declaration of Fred Weaver, M.D (“Dr. Weaver”).

Opposing Party’s Argument

Plaintiff argues that Moving Defendant has not met its initial burden because the Weaver Declaration is insufficient in that Dr. Weaver fails to explain how the underlying facts of the case support his conclusions and ignores the additional injuries suffered by Plaintiff outside of her below-knee amputation. Plaintiff argues that Dr. Weaver’s opinion that Plaintiff had “desert foot” lacks any foundation because Dr. Weaver has not identified specific facts from Plaintiff’s medical record to support his diagnosis. Plaintiff also argues that Dr. Weaver has not explained why a different treatment course would not have affected Plaintiff’s outcome. Plaintiff alternatively requests a continuance pursuant to CCP Section 437c(h) to enable Plaintiff to depose Moving Defendant’s expert, Dr. Weaver.

Reply Argument

Moving Defendant argues that its expert declaration competently opines on causation because the Weaver Declaration sets forth Dr. Weaver’s experience, background, and training and explicitly lists the materials reviewed by Dr. Weaver which were authenticated and attached to Moving Defendant’s motion. Moving Defendant argues that Dr. Weaver’s declaration clearly explains his conclusions by identifying an alternate name for the vascular disease documented in Plaintiff’s medical records and walking through the objective medical findings relied on by Dr. Weaver. Moving Defendant argues that Dr. Weaver’s declaration is factually distinguishable from the expert declarations at issue in the cases put forth by Plaintiff. Moving Defendant argues that Plaintiff has failed to carry her burden by providing her own expert declaration, and further argues that Plaintiff’s request for a continuance is unfounded because a continuance cannot be used to bypass the timing requirement for producing an opposing expert declaration in opposition to the motion for summary judgment and the time for expert discovery has not commenced.

Evidentiary Objections

Plaintiff's evidentiary objections Nos. 1-4, 6-7 to the Weaver Declaration are OVERRULED.

Plaintiff's evidentiary objection No. 5 to the Weaver Declaration is SUSTAINED as being without foundation, only as to ¶5(g), lines 12-13 ("Plaintiff was comfortable going home with antibiotics instead of being admitted for IV antibiotics.").

Merits of the Motion

A. Medical Malpractice: Causation

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (*Chakalis v. Elevator Solutions, Inc.* (2012) 205 Cal.App.4th 1557, 1571.)

"Both the standard of care and defendants' breach must normally be established by expert testimony in a medical malpractice case." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.) Thus, in a medical malpractice case, "[w]hen a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-85 (citations omitted).) An expert declaration, if uncontradicted, is conclusive proof as to the prevailing standard of care and the propriety of the particular conduct of the health care provider." (*Starr v. Mooslin* (1971) 14 Cal.App.3d 988, 999.)

The proximate causation element should be based upon whether defendant's conduct was a "substantial factor" in bringing about the plaintiff's injuries. (*Mitchell v. Gonzales* (1991) 54 Cal.3d 1041, 1053.) Furthermore, the causation "must be proven within a reasonable medical probability based on competent expert testimony. Mere possibility alone is insufficient to establish a prima facie case." (*Jones v. Ortho Pharmaceutical Corporation, et al.* (1985) 163 Cal.App.3d 396, 402-403.)

Here, Moving Defendant argues that Plaintiff's medical negligence cause of action fails because the evidence indicates that the conduct of Moving Defendant and its staff members was not a substantial factor in causing Plaintiff's injuries. In support, Moving Defendant offers the expert declaration of Fred Weaver, M.D. ("Dr. Weaver"). Dr. Weaver is a physician who is licensed to practice in California. (Weaver Decl., ¶ 1.) Dr. Weaver is certified by the American Board of Surgery and the Vascular Surgery Board of the American Board of Surgery and has completed "an internship and residency in surgery and fellowships in surgery/transplantation and vascular surgery." (Weaver Decl., ¶ 1.) Dr. Weaver declares that he is "thoroughly familiar with the standard of practice for vascular surgeons in the Southern California medical community." (Weaver Decl., ¶ 2.) Dr. Weaver bases his opinions on his background, training, and experience in the field of surgery in addition to Dr. Weaver's review of Plaintiff's complaint, medical records, and deposition transcript. (Weaver Decl., ¶¶ 2, 4.)

Dr. Weaver opines to a reasonable degree of medical probability that "no act [or] omission on behalf of [Moving Defendant] or its staff caused or contributed to Plaintiff[s] alleged injuries." (Weaver Decl., ¶ 6.) Dr. Weaver declares that "[a]t the time of Plaintiff's initial visit for a toe injury in January 2024, she had non-reconstructible vascular disease, also known as 'desert foot.' In patients with desert foot, the major arterial network is open, but at the ankle, all the vessels close. As a result, when a patient with this disease suffers a small injury, such as a stubbed toe, there is not enough oxygen flowing to the area to heal the trauma." (Weaver Decl., ¶ 6(a).)

Dr. Weaver further declares that as of today and "as medicine existed in 2024, there exists no standard reconstructible procedures to treat desert foot. The only way to prevent amputation in a patient with this disease is to have recognition by the patient that foot care is imperative and to raise concern for any trauma with a medical care provider. In patients with desert foot[,] once an injury occurs, the only therapy available is wound care and antibiotics." (Weaver Decl., ¶ 6(b).)

Dr. Weaver declares that “any attempted intervention to prevent amputation of Plaintiff’s left lower leg was futile. There was no revascularization strategy that would have been worked to save Plaintiff’s foot.” (Weaver Decl., ¶ 6(c).)

Dr. Weaver has opined that Plaintiff’s underlying vascular disease or “desert foot” caused Plaintiff’s subsequent below-knee amputation, and Plaintiff’s pre-existing vascular disease was not treatable outside of providing wound care and antibiotics. The court finds that Moving Defendant has met its initial burden of showing that its conduct was not a substantial factor in causing Plaintiff’s injuries. Next, the burden shifts to Plaintiff to show that there is a triable issue of material fact as to causation.

In opposition, Plaintiff challenges the evidentiary sufficiency of the Weaver Declaration and alternatively requests a continuance, pursuant to Code of Civil Procedure Section 437c(h). The court has previously addressed Plaintiff’s evidentiary objections and has found the Weaver Declaration to be sufficient to enable Moving Defendant to carry its initial burden. The court notes that Plaintiff has not provided her own expert declaration, such that Plaintiff has not met her burden of establishing the existence of a triable issue of material fact.

In the alternative, Plaintiff requests a continuance to allow Plaintiff to depose Dr. Weaver.

Code of Civil Procedure Section 437c(h) provides that “[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.”

“Code of Civil Procedure section 437c, subdivision (h) requires more than a simple recital that ‘facts essential to justify opposition may exist.’” (Lerma v. County of Orange (2004) 120 Cal.App.4th 709, 715.) “The affidavit or declaration in support of the continuance request must detail the specific facts that would show the existence of controverting evidence.” (Ibid. (citing Roth v. Rhodes (1994) 25 Cal.App.4th 530, 548.) Section 437c(h) “specifically requires a good faith showing by affidavit. It is not enough to merely raise the issue in the opposition memorandum.” (American Continental Ins. Co. v. C & Z Timber Co. (1987) 195 Cal.App.3d 1271, 1280.)

Here, Plaintiff’s counsel declares that “Plaintiff requires Dr. Weaver’s limited deposition to determine the factual and medical basis for his causation opinions,” including the materials relied upon by Dr. Weaver, the “objective medical basis” for his “desert foot” opinion, when Plaintiff’s condition became non-reconstructible, what interventions Dr. Weaver considered before concluding that any attempted intervention was futile, whether any earlier medical intervention could have affected Plaintiff’s outcome, whether Dr. Weaver considered Plaintiff’s injuries beyond her amputation, and the basis for Dr. Weaver’s opinion that no act or omission by Moving Defendant caused Plaintiff’s injuries. (Katz Decl., ¶ 18.) Plaintiff’s counsel declares that “[w]ithout Dr. Weaver’s deposition, Plaintiff cannot understand or meaningfully respond to the foundation, assumption, and reasoning of his expert declaration/opinions on causation,” and “cannot fully determine whether a responsive expert declaration can be provided.” (Katz Decl., ¶ 20.)

Plaintiff’s counsel specifically requests a continuance of “no less than 90 days,” and declares that a continuance will not prejudice Moving Defendant because Plaintiff’s requested discovery is “narrowly directed to the expert declaration on which [Moving Defendant’s] motion depends.” (Katz Decl., ¶ 23.)

The court finds that Plaintiff has failed to sufficiently establish that facts justifying Plaintiff’s opposition may exist but cannot yet be presented. The court has previously found that the Weaver Declaration is sufficient to enable Moving Defendant to carry its initial burden, and the court is not persuaded by Plaintiff’s argument that Plaintiff cannot “fully determine whether a responsive expert declaration can be provided” without first deposing Dr. Weaver. (Katz Decl., ¶ 20.) The court finds that the Weaver declaration provided sufficient foundation for his opinions. Thus, the Plaintiff had the opportunity to obtain an expert opinion in rebuttal.

Stated more directly, if the Weaver declaration was without foundation, certainly an expert could so opine based on the declaration itself without any deposition of the declarant. Therefore, the court finds that the affidavit from Plaintiff's counsel is insufficient to explain how a deposition of Dr. Weaver is necessary for Plaintiff's opposition.

Accordingly, Plaintiff's request for a continuance pursuant to Code of Civil Procedure Section 437c(h) is DENIED.

Because Plaintiff has not provided expert testimony of her own, the court finds that Plaintiff has not met her burden of establishing the existence of a triable issue of material fact regarding the causation element of Plaintiff's Medical Negligence cause of action.

Accordingly, Moving Defendant's Motion for Summary Judgment is GRANTED.

CONCLUSION

Based on the foregoing, Moving Defendant's Motion for Summary Judgment is GRANTED. Plaintiff's request for a continuance pursuant to Code of Civil Procedure Section 437c(h) is DENIED.

Moving party is ordered to give notice of ruling.